

The term 'Constitution', refers to a **set of principles** outlining the organisation and **functioning of the government**, as well as the **relationship between the government and the people** regarding their **rights and duties**. The Constitution is also described as the '**Fundamental law of the land**', '**Supreme law of the state**', '**Basic law of the country**', '**Instrument of the government**', '**Rules of the state**', '**Basic structure of the polity**,' and '**Ground norm of the country**'.

FEATURES OF THE INDIAN CONSTITUTION

- **Longest Written Constitution:** Initially, the Constitution (1949) had a **Preamble**, **395 Articles** (22 Parts), and **8 Schedules**. Currently consists of approximately **470 Articles** and **12 Schedules**.
 - **Size attributed to:** **Diversity** and **vastness** of India, **Historical factors** and **legal expertise** in the Constituent Assembly.
- **Sources of Provisions:** Borrowed from various international constitutions and the **Government of India Act, 1935**.
 - **Structural part of the Constitution-** Government of India Act, 1935.
 - **Philosophical part of the Constitution (FR and DPSPs)** - American and Irish Constitution respectively.
 - **Political part of the constitution** - British Constitution.
- **Federal System with Unitary Bias:** Term **Federation** not used; **Article 1** designates India as a **Union of States**.
 - **Federal Features:** Two governments, Division of Powers, written constitution, **bicameralism**, and constitution supremacy.
 - **Unitary Features:** Strong central authority, single citizenship, integrated judiciary, and emergency provisions.
- **Rigidity and Flexibility:** Blends rigid (USA) and flexible (UK) characteristics in amendment processes.
- **Parliamentary Form of Government:** Based on the **British Westminster model**; executives are accountable to Parliament.
- **Synthesis of Parliamentary Sovereignty and Judicial Supremacy:** **Parliamentary sovereignty** from the UK; **Judicial supremacy** from the USA.
- **Integrated and Independent Judiciary:** The **Supreme Court** at the apex, ensures **fundamental rights** and constitutional guardianship. Single judicial system enforcing both central and state laws.
- **Fundamental Rights:** Promotes **political democracy** through six rights:
 - **Right to Equality** (Articles 14-18)
 - **Right to Freedom** (Articles 19-22)
 - **Right against Exploitation** (Articles 23-24)
 - **Right to Freedom of Religion** (Articles 25-28)
 - **Cultural and Educational Rights** (Articles 29-30)
 - **Right to Constitutional Remedies** (Article 32)
- **Directive Principles of State Policy:** Found in **Part IV (Article 36-51)**; aimed at establishing a **social and economic democracy and welfare state**.
 - **Non-justiciable**, non-enforceable by courts.
 - Classified into **socialistic**, **Gandhian**, and **liberal-intellectual**.
- **Fundamental Duties:** Added by the **42nd Amendment**; specifies **11 duties** in Article 51-A.
 - **Non-justiciable** in nature.
- **Secular State:** Term '**Secular**' was added to the Preamble (42nd CAA, 1976). Promotes equal respect for all religions, as opposed to Western secularism's complete separation.
 - **Articles promoting secularism:** Preamble, Articles **14, 15, 16, 25-30, 44**.
- **Universal Adult Franchise:** Voting age lowered to **18** (61st CAA, 1989); basis for elections.
- **Single Citizenship:** Citizens enjoy uniform **political and civil rights** throughout India, unlike the USA where state citizenship exists.
- **Independent Bodies:** Essential democratic institutions: **Election Commission, Comptroller and Auditor General, Union and State Public Service Commissions**.
- **Emergency Provisions:** Ensure national sovereignty and security through:
 - **National Emergency** (Article 352)
 - **State Emergency** (Articles 356 and 365)
 - **Financial Emergency** (Article 360)

During emergencies, the federal structure shifts to a unitary model.

- **Three-Tier Government: Art. 40:** Promotes **village panchayats**.
 - **73rd CAA (1992):** Recognizes **Panchayati Raj**.
 - **74th CAA (1992):** Recognizes **Municipalities**.
- **Cooperative Societies: 97th CAA (2011):** Grants constitutional status and protection;
 - Recognizes the right to form cooperatives as a **Fundamental Right** (Article 19).
 - **New DPSP:** Promotion of cooperative societies (Art. **43B**).
 - **Part IX-B:** Dedicated to cooperative societies (Articles **243-ZH** to **243-ZT**).

Parts of the Indian Constitution		
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Schedules of the Indian Constitution		
Schedule	Description	Related Articles
First Schedule	Lists the States and Union Territories along with their territories. Currently includes 28 States and 8 Union Territories .	Articles 1 and 4
Second Schedule	Outlines provisions for emoluments, allowances, and privileges for the President of India, Governors of States, Speaker and Deputy Speaker of the Lok Sabha, Chairman and Deputy Chairman of the Rajya Sabha, Speaker and Deputy Speaker of the Legislative Assembly in states, Chairman and Deputy Chairman of the Legislative Council in states, Judges of the Supreme Court, Judges of the High Courts, Comptroller and Auditor General of India .	Articles 75(4), 99, 124(6), 148(2), 164(3), 188 and 219
Third Schedule	Provides forms of oaths or affirmations for: • Union and State Ministers • Candidates for election to the Parliament and the State Legislature • Members of Parliament and State Legislature • Judges of the Supreme Court and High Courts • Comptroller and Auditor General of India. Note: An oath is a solemn promise made under the invocation of God, while an affirmation is a non-religious pledge made by individuals who choose not to invoke religious references, both serving as formal commitments to uphold constitutional duties.	Articles 75(4), 99, 124(6), 8(2), 164(3), 188, 219, 75, 84, 99, 124, 146, 173, 188, 219
Fourth Schedule	Details the number of seats allocated to each state and union territory in the Council of States (Rajya Sabha) .	Articles 4(1) and 80(2)
Fifth Schedule	Provides for the administration of Scheduled Areas in certain states.	Articles 244
Sixth Schedule	Focuses on administering Tribal Areas in the states of Assam, Meghalaya, Tripura, and Mizoram .	Articles 244(2) and 275(1)
Seventh Schedule	Contains three lists for legislative authority: • Union List: National importance subjects for central law-making (e.g., defence, foreign affairs). • State List: Local subjects for state law-making (e.g., police, public health). • Concurrent List: Joint subjects for both (e.g., education). • Notes: Parliament can legislate on residuary subjects; Union List prevails over State List and Concurrent List; Central law takes precedence in case of conflict unless state law is approved by the President.	Article 246
Eighth Schedule	Lists recognized languages in India. Originally included 14 , now contains 22 languages : • Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu. Sindhi was added by the 21st CAA, 1967. • Konkani, Manipuri and Nepali were added by the 71st CAA, 1992. • Bodo, Dongri, Maithili and Santhali were added by the 92nd CAA, 2003. • Oriya was renamed as 'Odia' by the 96th CAA, 2011. [UPSC 2024]	Articles 344(1) and 351
Ninth Schedule	• Acts and Regulations (originally 13 but presently 282 acts) of the State legislatures dealing with land reforms and abolition of the zamindari system and of the Parliament dealing with other matters. • This schedule was added by the 1st Amendment (1951) under J L Nehru as PM to protect the laws included in it from judicial review on the grounds of violation of Fundamental rights. However, the Supreme Court ruled that the laws included in this schedule after April 24, 1973, are now open to judicial review(I R Coelho Case). [UPSC 2018, 2019]	Article 31B

Tenth Schedule	Contains provisions regarding the disqualification of Parliament and State Legislature members on the grounds of defection (known as the Anti-defection Law), added by the Fifty-second Amendment (1985).	Articles 102(2) and 191(2)
Eleventh Schedule	Added by the Seventy-third Amendment (1992), detailing the powers, authority, and responsibilities of Panchayats . It contains 29 functional items : Agriculture, Land improvement, Implementation of land reforms, Land consolidation, etc.	Article 243G
Twelfth Schedule	Added by the Seventy-fourth Amendment (1992), outlining the powers, authorities, and responsibilities of Municipalities . It includes 18 functional items : Urban planning, including town planning, Regulation of land use and construction of buildings, Planning for economic and social development, etc.	Article 243W

ORDER OF PRECEDENCE: REPUBLIC OF INDIA

Order of Precedence is a protocol list maintained by the **Ministry of Home Affairs**. In it, the functionaries and authorities are recorded by rank and office in the Government of India. It is meant for State and **Ceremonial occasions** and has **no application** in the day-to-day business of the Government. Order of Precedence of the most important dignitaries is:

1. President
2. Vice-President
3. Prime Minister
4. Governors of States within their respective States
5. Former Presidents
- 5A. Deputy Prime Minister
6. Chief Justice of India = Speaker of Lok Sabha
7. Cabinet Ministers of the Union = Chief Ministers of States within their respective States = Vice-Chairperson, NITI Aayog = Former Prime Ministers = Leaders of Opposition in Rajya Sabha and Lok Sabha
- 7A. Holders of Bharat Ratna
8. Ambassadors Extraordinary and Plenipotentiary and High Commissioners of Commonwealth countries accredited to India = Chief Ministers of States outside their respective States = Governors of States outside their respective States.
9. Judges of the Supreme Court
- 9A. Chairperson of Union Public Service Commission = Chief Election Commissioner = Comptroller and Auditor General of India
10. Deputy Chairman of Rajya Sabha = Deputy Chief Ministers of States = Deputy Speaker of Lok Sabha = Members of the NITI Aayog = Ministers of State of the Union
11. Attorney General of India = Cabinet Secretary = Lieutenant Governors within their respective Union Territories.

AMENDMENT OF THE CONSTITUTION (PART XX: ARTICLE 368)

Amending the Constitution of India is the **process of making changes to the nation's fundamental law or supreme law**. Amendment to the constitution feature is borrowed from the constitution of **South Africa**. The procedure for amending the Constitution is **neither flexible (Britain) nor rigid (USA)**. It is the **synthesis of both**. It states that **Parliament may amend the Constitution** but can't amend those provisions which form the **basic structure** of the Constitution (**Kesavananda Bharati case, 1973**). **Article 368** has been amended by the **24th and 42nd Amendments in 1971 and 1976**, respectively.

Constitutional Amendment Bill Procedure (Article 368): Key Points

- **Introduction:** Can be introduced in either house of Parliament by a **minister** or **private member**. No State legislature can do so. [UPSC 2013]
- **President's Role:** No prior permission required for introduction. [UPSC 2022]
- **Majority Needed:** Requires a **special majority** (50% total membership + 2/3 of members present & voting). [UPSC 2022]
- **Passage:** Both houses must pass it separately; **no provision of joint sitting** in case of disagreement.
- **Amendment of Federal Provisions:** Needs **special majority + state ratification** (half the states by simple majority). [UPSC 2013]
- **President's Assent:**
 - **24th constitutional amendment:** It also amended Article 368 to provide expressly that Parliament has the power to amend any provision of the Constitution. The amendment further made it **obligatory for the President to give his assent**, when a Constitution Amendment Bill was presented to him. [UPSC 2022]
 - He can neither withhold his assent to the bill nor return the bill for reconsideration by the Parliament.
 - After the President's assent, the bill becomes an Act, and the Constitution stands amended in accordance with the terms of the Act.

Types of Majorities in Parliament

Type of Majority	Explanation
Simple Majority	Majority of the members present and voting, not considered under Art.368 . Example: Recently, the number of SC judges was increased from 31 to 34 by the Supreme Court (Number of Judges) Amendment Act, 2019.
Absolute Majority	Majority of the total membership of the House, regardless of vacancies or absent members.
Effective Majority	Majority of the effective strength of the House (i.e. Total Strength minus vacancies) Example: 'Removal of chair of house.'
Special Majority as per Article 249	Majority of not less than 2/3 of the members present and voting .
Special Majority under Article 368	Majority of the total membership (irrespective of the vacancies/absentees) and by a majority of not less than 2/3 of members present and voting. Example: 103rd amendment to provide 10% reservation to EWS.
Special Majority under Article 61	Majority of not less than 2/3 of the total membership of the House .
Special Majority of Parliament & Consent of States	- Special majority + Ratification of half (50%) of the state legislatures by a simple majority. Most of the federal provisions are amended by this method. [UPSC 2013] - If one or some or all the remaining states take no action on the bill, it does not matter; the moment half of the states give their consent, the formality is completed. There is no time limit within which the states should give their consent to the bill. Example: 101st Amendment related to GST.

Various Provisions and Type of Majority Required:

- Provisions that require a Simple Majority
 - Admission of new states (Art. 2)
 - Formation and alteration of existing states (Art. 3)
 - The Second Schedule, abolition/creation of legislative councils (Art. 169)
 - Quorum in Parliament (Art. 100)
 - Salaries and allowances of members (Art. 106)
 - Rules of procedure (Art. 118)
 - Use of English, number of puisne judges, privileges of Parliament (Art. 105)
 - Jurisdiction to the Supreme Court (Art. 138)
 - Official language (Art. 343)
 - Citizenship (Art. 5-11)
 - Elections, delimitation of constituencies (Art. 82)
 - Union Territories, the Fifth Schedule (Art. 244), and the Six Schedules (Art. 244).
- Provisions that require a Special Majority: Fundamental Rights, DPSPs and all other provisions which are not covered by the first and third categories.
 - Provisions that require a Special Majority + Ratification of half of the States: election of the

President (Art. 54 and 55), executive powers of the Union and states, Supreme Court and High Courts (Art. 124 & 214)

- Legislative powers distribution, Goods and Services Tax Council, the Seventh Schedule (Art. 246)
- Representation of states in Parliament, and Article 368.

Criticism of the Amendment Procedure

- Unlike the USA, Indian states cannot initiate constitutional amendments; this authority rests solely with Parliament. The only exception is when states pass a resolution requesting the creation or abolition of a legislative council, which Parliament can approve, reject, or ignore.
- The Constitution does not mention the time within which state legislatures ratify or reject the amendment. The Constitution is also silent on whether the states can withdraw their approval once given.
- No provision for a special body for amendment + Only in a few cases, the consent of the state legislatures is required.
- No provision for holding a joint sitting.
- Wide scope for taking matters to the judiciary due to vague provisions.

Major Constitutional Amendments at a Glance

Constitutional Amendment Acts (CAA)	Description
1 st CAA, 1951	- Empowered the state to make special provisions for the advancement of socially and economically backward classes. - Provided for the saving of laws providing for the acquisition of estates, etc. - The first PM, Jawaharlal Nehru, added the Ninth Schedule to protect the land reforms and other laws included in it from judicial review. Afterwards, Art.31, 31A and 31B were inserted. [UPSC 2023] Three more grounds for restrictions on Article 19 (1) were added: Public order, Friendly relations with foreign states, and Incitement to an offence. - The validity of the state's move to nationalise any business or trade and the same to not be invalid on the grounds of violation of the right to trade and business.
7 th CAA, 1956	- Extended the jurisdiction of high courts to union territories. - Provided for the appointment of additional and acting judges of the high court. - The provision of having a common High Court for two or more states was introduced. - Abolition of Class A, B, C and D states and reorganised them into 14 States and 6 UTs. - Article 153 provides that there shall be a Governor for each State. Since it may be desirable in certain circumstances to appoint a Governor for two or more States, it is proposed to add a proviso to this article to remove any possible technical bar to such an appointment.
9 th CAA, 1960	- Adjustments to Indian Territory as a result of Indo-Pak Agreement 1958 with Pakistan. - Cession of Indian territory of Berubari Union (West Bengal) to Pakistan.
14 th CAA, 1962	Incorporated Puducherry in the Indian Union. - Provided for the creation of legislatures and council of ministers for the Union Territories of Himachal Pradesh, Manipur, Tripura, Goa, Daman and Diu, and Puducherry.
16 th CAA, 1963	- Expanded government authority to limit free speech and assemblies for national unity and safety. - Required oaths of office to include commitments to India's unity.
24 th CAA, 1971	- Affirmed the power of Parliament to amend any part of the Constitution, including Fundamental rights. - Made it compulsory for the President to give his assent to a Constitutional Amendment Bill.
25 th CAA, 1971	Limited the right to property and protected laws under Article 39 (b) or (c) from challenges based on Article 14, 19, and 31.
26 th CAA, 1971	Abolished the privy purses and privileges of the former rulers of princely states.
35 th CAA, 1974	Terminated the protectorate status of Sikkim and conferred the status of an associate state of the Indian Union. - The Tenth Schedule was added, laying down the terms and conditions of the association of Sikkim with the Indian Union.
36 th CAA, 1975	Made Sikkim a full-fledged State of the Indian Union and omitted the Tenth Schedule.
39 th CAA, 1975	Election of the President, Vice President, Prime Minister and the Speaker of the Lok Sabha beyond the scrutiny of the Indian courts. Introduced during the time of Emergency 1975–1977. [UPSC 2019]

42nd CAA, 1976 (Mini Constitution)	- Added three new words - Socialist, Secular and Integrity - in the Preamble. - Added Fundamental Duties by the citizens (new Part IV A). - Added four new Directive Principles viz., healthy development of children (Article 39); equal justice and free legal aid (Article 39A); the participation of workers in the management of industries (Article 43A) and protection of the environment, forests, and wildlife (Article 48A). DPSPs vs. Rights: Established DPSPs as superior to Fundamental Rights. Elections: Delayed delimitation of constituencies until the 2001 census. Parliament: President was obligated to follow the cabinet's advice unrestricted amendment powers. Judiciary: Limited Supreme Court's review powers; amendments became immune to challenges. [UPSC 2019] Federalism: Shifted five subjects to the Concurrent List (Education, Forests, Weights & Measures, Protection of Wild Animals and Birds, & Administration of Justice) Emergency Provisions: Allowed localised emergencies; extended President's rule to one year.
43rd CAA, 1977	Restored the original position of the HC and moreover now the HC is considered as the principal civil courts of original jurisdiction in each state and union territory, thus they shall have the jurisdiction to declare any central law to be constitutionally invalid. [UPSC 2019]
44th CAA, 1978	- Replaced the term 'internal disturbance' by 'armed rebellion' in respect of national emergency. - Made the President declare a national emergency only on the written recommendation of the cabinet. - Deleted the right to property from the list of Fundamental Rights and made it only a legal right. - Provided that the fundamental rights guaranteed by Art.20 and 21 cannot be suspended during a national emergency. [UPSC 2020]
52nd CAA, 1985	- Provided for disqualification of members of Parliament and state legislatures on the ground of defection and added a Tenth Schedule containing the details in this regard. 91st CAA (2001): Strengthened anti-defection laws by removing exceptions for splits.
61st CAA, 1989	Reduced the voting age from 21 years to 18 years for the Lok Sabha and state legislative assembly elections.
69th CAA, 1991	Accorded a special status to the Union Territory of Delhi by designating it as the National Capital Territory of Delhi . The amendment also provided for the creation of a 70-member legislative assembly and 7-member council of ministers for Delhi .
73rd CAA, 1992	Granted constitutional status and protection to the Panchayati Raj institutions also added a new Part-IX entitled as ' the panchayats ' and a new ' Eleventh Schedule ' containing 29 functional items of the panchayats.
74th CAA, 1992	Granted constitutional status and protection to the urban local bodies and facilitated the addition of a new Part IX-A entitled as ' the municipalities ' and a new ' Twelfth Schedule ' containing 18 functional items of the municipalities.
84th CAA, 2001	Extended the ban on the readjustment of seats in the Lok Sabha and the state legislative assemblies for another 25 years (i.e., up to 2026) with the same objective of encouraging population-limiting measures.
86th CAA, 2002	- Made elementary education a fundamental right under Article 21A. Changed the subject matter of Article 45 in Directive Principles - Added a new fundamental duty under Article 51A.
89th CAA, 2003	Bifurcated the erstwhile combined National Commission for Scheduled Castes and Scheduled Tribes into two separate bodies , namely, National Commission for Scheduled Castes (Art.338) and National Commission for Scheduled Tribes (Art.338A).

97th CAA, 2011	● Constitutional status and protection to cooperative societies. It made the following three changes in the constitution: ○ It made the right to form co-operative societies a fundamental right (Article 19). ○ It included a new Directive Principle of State Policy on the promotion of co-operative societies. ○ It added a new Part IX-B in the constitution which is entitled “The Co-operative Societies”.
99th CAA, 2014	● Formation of a National Judicial Appointments Commission. ● Note: In 2015, a five judge Constitution Bench of SC by 4:1 majority upheld the collegium system and struck down the NJAC as unconstitutional. [UPSC 2019]
100th CAA, 2015	Related to the Land Boundary Agreement (LBA) between India and Bangladesh.
101st CAA, 2017	Introduced the Goods and Services Tax in the country from 1st July 2017.
102nd CAA, 2018	Constitutional status to National Commission for Backward Classes (NCBC)-Article 338B.
103rd CAA, 2019	● Provided a maximum of 10% Reservation for Economically Weaker Sections (EWS). Introduced Articles 15(6) and 16(6), granting up to 10% reservation for the Economically Weaker Sections (EWS) among non-OBC and non-SC/ST groups in admissions and government jobs, excluding minority-run institutions. ● This amendment was upheld by a Supreme Court bench with a 3:2 majority.
104th CAA, 2020	Extended the reservation of seats for SCs and STs in the Lok Sabha and states assemblies until 2030 and discontinued special representation for the Anglo-Indian community.
105th CAA, 2021	Exempted the state governments from consulting the National Commission for Backward Classes with regard to the preparation and maintenance of the list of socially and educationally backward classes (SEBCs) for their own purposes.
106th CAA, 2023	It reserves one-third of all seats for women in Lok Sabha, State legislative assemblies, and the Legislative Assembly of the National Capital Territory of Delhi, including those reserved for SCs and STs.

EVOLUTION OF BASIC STRUCTURE DOCTRINE

Basic Structure **encompasses basic and core values which form the bedrock of the Indian Constitution.** It is a Judicially innovative doctrine which is **neither defined under the Constitution nor defined by the Supreme Court or any other court.** Various judgments of the Supreme Court form the bedrock of the Basic Structure Doctrine. **[UPSC 2020]**

Basic Structure **cannot be amended by Parliament under Art. 368.**

Present position: Under Article 368, Parliament **can amend any part of the Constitution**, including the Fundamental Rights, but **without affecting the ‘basic structure’ of the Constitution.** The Supreme Court has yet to define or clarify what constitutes the ‘basic structure’ of the Constitution.

Cases Related to the Basic Structure Doctrine

Cases	Description
Shankari Prasad Case 1951	● Whether parliament can curtail Fundamental Rights under Article 368 was dealt with in this case. The constitutional validity of the 1st Amendment Act (1951), which curtailed the Right to Property, was challenged. ● Supreme Court: Under Article 368, Parliament can amend Fundamental Rights (FR). Article 13 includes only ordinary law and not constitutional amendment law. Amendments abridging FR cannot be void under Article 13.
Golaknath Case 1967	● The 17th Amendment (1964), which inserted certain state laws in the 9th Schedule, was challenged. ● Supreme Court: FRs are transcendental and immutable. Parliament cannot abridge or take away any FR. Constitutional Amendment Acts are laws under Article 13. So, any amendment violating FR would be void under Article 13.

Parliament's Reaction to Golaknath Case	● 24th Amendment Act (1971): The act amended Articles 13 and 368. ● Parliament can take away any FR under Article 368, and such acts are not laws under Article 13.
Kesavananda Bharati Case 1973	Supreme Court: Overruled its judgement in the Golaknath Case (1967) and upheld the 24th Amendment. ● The basic Structure Doctrine was laid down by SC. ● Parliament cannot alter the Basic structure of the Constitution. ● Parliament cannot take away FR that forms the Basic Structure Doctrine.
39th Amendment 1975	Election disputes between the PM and the Speaker of LS were kept outside the jurisdiction of the court, affecting basic structure.
Indira Nehru Gandhi Case 1975	Supreme Court: Invalidated 39th Amendment. Judicial review is a basic structure.
42nd Amendment 1976	Amended Article 368 , no limitations on constituent power of Parliament and no amendment can be questioned in courts.
Minerva Mills Case 1980	● Invalidated above changes under the 42nd Amendment. ● Judicial review is a basic structure of the constitution.
Waman Rao case 1981	● Again, the Supreme Court adhered to the doctrine of the 'basic structure' and clarified that it would apply to constitutional amendments enacted after April 24, 1973 (Kesavananda Bharati case).
L. Chandra Kumar v. Union of India, 1997	Reiterated the independence of the judiciary as an integral part of the Basic Structure.
IR Coelho vs State of Tamil Nadu, 2007	The SC ruled that all laws (including those in the Ninth Schedule) would be open to Judicial Review if they violated the basic structure of the Constitution.
Justice K.S. Puttaswamy (Retd.) v. Union of India (Aadhaar Case) 2017	Recognized the right to privacy as a fundamental right, affirming it as part of the Basic Structure of the Constitution.

ELEMENTS OF BASIC STRUCTURE

With various Supreme Court judgements, various elements emerged as 'basic features' includes:

● Separation of powers between the legislature, the executive and the judiciary	● Powers of the Supreme Court under Articles 32, 136, 141 and 142	● Sovereign, democratic and republican nature of the Indian polity.	● Balance between Fundamental Rights and Directive Principles
● Powers of the High Courts under Articles 226 and 227.	● Limited power of Parliament to amend the Constitution.	● Effective access to justice.	● Principles (or essence) underlying fundamental rights.
● Federal character of the Constitution.	● Secular character of the Constitution.	● Welfare state (socio-economic justice).	● Unity and integrity of the nation.
● Principle of equality.	● Rule of Law	● Parliamentary system.	● Judicial review.
● Freedom and dignity of the individual.	● Supremacy of the Constitution.	● Free and fair elections	● Independence of Judiciary.

